Rigoberto Cabrera, Reg. No. 33513-018
Federal Correctional Institution Miami
P.O. Box 779800
Miami, Florida 33177

November 6, 2026

Clerk of Court
United States District Court, Southern District of Florida
Wilkie D. Ferguson, Jr. United States Courthouse
400 North Miami Avenue
Miami, Florida 33128

Re: *Cabrera v. Healthcare Systems of America–Florida LLC, et al.*, Case No. 1:26-cv-23693-MFE (Magistrate Judge Elfenbein)

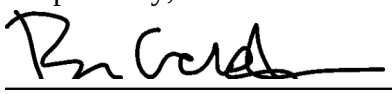
Dear Clerk:

I am the Plaintiff in this case. Please file the two enclosed documents on the docket and bring them to the attention of the Court:

1. Plaintiff's Motion for Leave to Accept Late-Filed Response to Order to Show Cause, and Request for a Ruling on His Motion to Proceed in Forma Pauperis and for Service of Process by the United States Marshal; and
2. Plaintiff's Request for Judicial Notice, with Exhibits A and B.

I am incarcerated and cannot file electronically, so I am sending these by regular mail. Thank you for your help.

Respectfully,



Rigoberto Cabrera, Plaintiff, Pro Se

Enclosures (2)

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF FLORIDA

RIGOBERTO CABRERA, Plaintiff, v. HEALTHCARE SYSTEMS OF AMERICA-FLORIDA LLC, d/b/a PALMETTO GENERAL HOSPITAL; HSA PGH, LLC, d/b/a PALMETTO GENERAL HOSPITAL; and JOHN DOE, an unidentified MRI Technologist, Defendants.	Case No.: 1:26-cv-23693-MFE

PLAINTIFF'S MOTION FOR LEAVE TO ACCEPT LATE-FILED RESPONSE TO ORDER TO SHOW CAUSE, AND REQUEST FOR A RULING ON HIS MOTION TO PROCEED IN FORMA PAUPERIS AND FOR SERVICE OF PROCESS BY THE UNITED STATES MARSHAL

Plaintiff Rigoberto Cabrera, appearing pro se, respectfully asks the Court to do three things. First, accept his Response to the Court's Order to Show Cause, which the Clerk docketed on July 1, 2026, nine days after the June 22, 2026 deadline. Second, rule on his Motion for Leave to Proceed in Forma Pauperis (DE 3), which has been pending since he filed this case on May 22, 2026. Third, direct the United States Marshal to serve process on the Defendants. Plaintiff is incarcerated and cannot move this case forward without the Court's help.

BACKGROUND

Plaintiff is a federal prisoner at the Federal Correctional Institution in Miami. On May 22, 2026, he filed this action for battery under Florida law, invoking diversity jurisdiction under 28 U.S.C. § 1332(a)(2) because he is a citizen of a foreign state. He filed a motion for leave to proceed in forma pauperis (DE 3) with his complaint and later filed a supplement to it (DE 6).

On June 1, 2026, the Court issued an Order to Show Cause (DE 4) directing Plaintiff to demonstrate that the Court has subject-matter jurisdiction under 28 U.S.C. § 1332, with a response due June 22, 2026. Plaintiff prepared a Response, a First Amended Complaint naming the

Defendants' corporate structure, a Declaration, and supporting public records. Because he is incarcerated, he has no access to the Court's electronic filing system and must send and receive his legal mail by regular mail through a person outside the facility. Part of the supporting material was a defendants' answer that Healthcare Systems of America-Florida LLC and related entities filed in another case in this District on June 11, 2026, eleven days before the deadline. The package was sent out for mailing on June 25, 2026, and the Clerk docketed it on July 1, 2026.

No Defendant has been served or has appeared. The Court has not ruled on the Response, on the motion to proceed in forma pauperis, or on service. The docket has been quiet since July 1, 2026.

LEGAL STANDARD

When a deadline has passed, the Court "may, for good cause, extend the time . . . on motion made after the time has expired if the party failed to act because of excusable neglect." Fed. R. Civ. P. 6(b)(1)(B). The Supreme Court has explained that "the determination is at bottom an equitable one, taking account of all relevant circumstances surrounding the party's omission." *Pioneer Inv. Servs. Co. v. Brunswick Assocs. Ltd. P'ship*, 507 U.S. 380, 395 (1993). The relevant circumstances include "the danger of prejudice to the [opposing party], the length of the delay and its potential impact on judicial proceedings, the reason for the delay, including whether it was within the reasonable control of the movant, and whether the movant acted in good faith." *Id.* Each factor favors Plaintiff.

ARGUMENT

I. The Court Should Accept Plaintiff's Response Because the Short Delay Was Excusable Neglect.

No one is harmed by accepting the Response. No Defendant has been served or has appeared, so no one has relied on the missed date or lost anything by it. The Court has set no hearing, trial date, or other deadline that the late Response disturbed. Accepting it costs the Court nothing and lets the Court decide jurisdiction on a full record.

The delay was brief. The Response was docketed nine days after the deadline. In the months since, the case has not moved, so the delay did not slow anything the Court was doing.

The reason for the delay is understandable. Plaintiff is a prisoner with no electronic filing access. To answer the Order, he had to assemble a response and public records from other courts, including a filing made only on June 11, 2026, and then get the package into the mail through someone outside the prison. Those steps ran past the deadline. Plaintiff did not ignore the Court's Order. He answered it as fully as he could, and he is not asking the Court to excuse a refusal to comply. He acknowledges that he should have asked for more time before June 22, and he asks the Court to treat his omission as the kind of neglect *Pioneer* allows the Court to excuse.

Plaintiff acted in good faith. The Response and First Amended Complaint were prepared to answer the Court's concern directly, with documents the Court can verify. Plaintiff now comes forward on his own to explain the delay and ask for leave.

II. The Court Should Rule on Plaintiff's Pending Motion to Proceed in Forma Pauperis (DE 3).

Plaintiff has no money to pay the filing fee. His motion and supplement tell the Court so, and his inmate trust account is nearly empty. Because he cannot pay to serve the Defendants himself, the motion is the key that unlocks the rest of the case. It has now been pending for more than five months. Plaintiff respectfully asks the Court to decide it.

III. The Court Should Direct the United States Marshal to Serve Process.

When a plaintiff is allowed to proceed in forma pauperis, Congress directs that the officers of the court issue and serve all process. 28 U.S.C. § 1915(d). The Federal Rules say the same thing: the Court "may order that service be made by a United States marshal," and it "must so order if the plaintiff is authorized to proceed in forma pauperis under 28 U.S.C. § 1915." Fed. R. Civ. P. 4(c)(3). Plaintiff is in custody, has no means to pay a process server, and cannot serve anyone himself. If the Court grants the motion to proceed in forma pauperis, Plaintiff asks the Court to order the Marshal to serve the summons and First Amended Complaint on each Defendant, to tell Plaintiff

what, if anything, he must provide for that purpose, and to confirm that the time to complete service runs from the date of the Court's order.

IV. Plaintiff Is Filing a Separate Request for Judicial Notice.

Plaintiff prepared a Request for Judicial Notice of public court records when he filed his Response, but it does not appear on the docket. He is filing it again with this Motion so the Court has it.

CERTIFICATE OF CONFERRAL

No Defendant has been served or has appeared, so there is no opposing party with whom Plaintiff could confer before filing this Motion.

CONCLUSION

For these reasons, Plaintiff respectfully asks the Court to: (a) grant leave under Federal Rule of Civil Procedure 6(b)(1)(B) and accept his Response to the Order to Show Cause as timely filed; (b) rule on his Motion for Leave to Proceed in Forma Pauperis (DE 3); (c) if that motion is granted, order the United States Marshal to serve the summons and First Amended Complaint on each Defendant under 28 U.S.C. § 1915(d) and Federal Rule of Civil Procedure 4(c)(3), and provide that the time for service runs from that order; and (d) grant any further relief the Court finds just.

Respectfully submitted this 6th day of November, 2026.



RIGOBERTO CABRERA
Plaintiff, Pro Se
Reg. No. 33513-018
Federal Correctional Institution Miami
P.O. Box 779800
Miami, Florida 33177

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF FLORIDA

RIGOBERTO CABRERA, Plaintiff, v. HEALTHCARE SYSTEMS OF AMERICA-FLORIDA LLC, d/b/a PALMETTO GENERAL HOSPITAL; HSA PGH, LLC, d/b/a PALMETTO GENERAL HOSPITAL; and JOHN DOE, an unidentified MRI Technologist, Defendants.	Case No.: 1:26-cv-23693-MFE

PLAINTIFF'S REQUEST FOR JUDICIAL NOTICE
IN SUPPORT OF PLAINTIFF'S RESPONSE TO ORDER TO SHOW CAUSE

Under Federal Rule of Evidence 201(b) and 201(c)(2), Plaintiff Rigoberto Cabrera, appearing pro se, asks the Court to take judicial notice of the five public records identified below. Two of them, the complaint and the answer in the Maxfield case, are attached to this Request as Exhibits A and B. The other three are government and court records whose contents are identified specifically below. Plaintiff first prepared this Request with his Response to the Order to Show Cause, but it does not appear on the docket, so he is filing it again.

LEGAL STANDARD

A court "must take judicial notice if a party requests it and the court is supplied with the necessary information." Fed. R. Evid. 201(c)(2). The Court may notice a fact that is not subject to reasonable dispute because it "can be accurately and readily determined from sources whose accuracy cannot reasonably be questioned." Fed. R. Evid. 201(b)(2). It may do so at any stage of the proceeding. Fed. R. Evid. 201(d). Plaintiff asks the Court to notice that each record was filed and what each says. He does not ask the Court to accept the truth of any disputed statement in them.

RECORDS

I. Florida Department of State — Entity Record for Healthcare Systems of America–Florida LLC

Fla. Dep't of State, Div. of Corps., Entity Records for Healthcare Systems of America–Florida LLC, Doc. No. M24000012582 (filed Oct. 2, 2024), https://search.sunbiz.org (last visited June 22, 2026). Plaintiff asks the Court to notice that this record shows Healthcare Systems of America–Florida LLC registered with the Florida Division of Corporations as a Nevada limited liability company (state of organization: NV), filed October 2, 2024, with a principal address of 505 North Brand Boulevard, Suite 1200, Glendale, California 91203, and a registered agent address in Miami, Florida. It is a record of a state agency kept in an official searchable database.

II. Complaint, Sarian v. Paronyan, No. 26STCV05675 (Cal. Super. Ct., L.A. Cnty.)

Complaint, Sarian v. Paronyan, No. 26STCV05675 (Cal. Super. Ct., L.A. Cnty. Feb. 24, 2026) (Quinn Emanuel Urquhart & Sullivan, LLP for Plaintiffs). Plaintiff asks the Court to notice that (1) this complaint was filed in the Superior Court of California, County of Los Angeles, on February 24, 2026; (2) Paragraph 10 states that "Plaintiff Mike Sarian is an individual residing in Los Angeles County, California"; (3) Paragraph 13 states that the Sarian Family Trust is a "California trust with its principal place of administration in Los Angeles County" and holds "1,000 shares (100%) of Plaintiff Healthcare Systems of America Corp."; and (4) Paragraph 15 states that Healthcare Systems of America Corp. "is a Nevada corporation headquartered in Glendale, California," "owns and operates eight hospitals outside California," and "is wholly owned by the Sarian Family Trust." These are statements in a public court filing.

III. Declaration of Mike Sarian, Sarian v. Paronyan, No. 26STCV05675 (Cal. Super. Ct., L.A. Cnty.)

Declaration of Mike Sarian in Support of Plaintiffs' Ex Parte Application for a Temporary Restraining Order and Order to Show Cause Re: Preliminary Injunction ¶¶ 4, 6, 8, 11, 20, Sarian v. Paronyan, No. 26STCV05675 (Cal. Super. Ct., L.A. Cnty. Feb. 24, 2026). Plaintiff asks the Court to notice that (1) this declaration was filed under penalty of perjury in Los Angeles County

Superior Court on February 24, 2026; (2) Paragraph 4 states, "I formed Healthcare Systems of America Corp. ('HSA') in September 2024 to pursue additional hospital acquisitions"; (3) Paragraph 6 states, "I am the CEO of all three companies and hold majority or sole ownership of each: 51% of AHS, 100% of HSA, and 60% of NOR"; (4) Paragraph 8 states, "Aramais Paronyan maintains minority ownership stakes in AHS (49%) and NOR (40%), and holds no ownership interest in HSA"; (5) Paragraph 11 states, "He [Gill] does not own shares in any of the companies"; and (6) Paragraph 20 states, "Mr. Paronyan has never had any ownership interest or involvement in HSA." These are statements in a public court filing.

IV. Complaint, Maxfield v. Healthcare Systems of America–Florida LLC, No. 0:26-cv-61343-MD (Exhibit A)

Complaint, Maxfield v. Healthcare Sys. of Am.–Fla. LLC, No. 0:26-cv-61343-MD (S.D. Fla. May 5, 2026) (Doc. 1) (Perera Law Group, P.A. for Plaintiff). Plaintiff asks the Court to notice that Paragraph 7 states, "HSAF is a foreign limited liability company registered to conduct business throughout the State of Florida," and that Paragraphs 5 and 6 describe co-defendants HSA FMC LLC and HSA NSMC LLC as Florida limited liability companies organized under Florida law. The difference between Paragraphs 5–6 and Paragraph 7 in the same pleading can be determined from this Court's own records.

V. Answer and Affirmative Defenses, Maxfield v. Healthcare Systems of America–Florida LLC, No. 0:26-cv-61343-MD (Exhibit B)

Answer ¶ 7, Maxfield v. Healthcare Sys. of Am.–Fla. LLC, No. 0:26-cv-61343-MD (S.D. Fla. June 11, 2026) (Doc. 14). Plaintiff asks the Court to notice that, in this answer filed by the defendants' own counsel, Paragraph 7 states, "Defendants admit that HSAF is a limited liability company registered to do business in Florida." This is a statement in a public court filing in a live proceeding in this District.

CONCLUSION

Plaintiff respectfully asks the Court to take judicial notice of the five records above for the limited purposes stated, in connection with Plaintiff's Response to the Order to Show Cause and the First Amended Complaint.

Respectfully submitted this 6th day of November, 2026.



RIGOBERTO CABRERA
Plaintiff, Pro Se
Reg. No. 33513-018
Federal Correctional Institution Miami
P.O. Box 779800
Miami, Florida 33177

EXHIBIT A

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF FLORIDA

CASE NO.

CHRISTOPHER MAXFIELD,

Plaintiff,

vs.

HEALTHCARE SYSTEMS OF AMERICA-FLORIDA LLC, D/B/A FLORIDA MEDICAL CENTER, HSA NSMC LLC D/B/A FLORIDA MEDICAL CENTER, and HSA FMC LLC D/B/A FLORIDA MEDICAL CENTER.

Defendants.
_____/

COMPLAINT

COMES NOW, Plaintiff, CHRISTOPHER MAXFIELD ("Plaintiff"), by and through undersigned counsel, and hereby files this Complaint against Defendants, Healthcare Systems of America-Florida LLC d/b/a Florida Medical Center ("HSAF"), HSA NSMC LLC d/b/a Florida Medical Center ("HSA NSMC"), and HSA FMC LLC d/b/a Florida Medical Center ("HSA FMC") (collectively referred to as "Defendants"), and as grounds therefore, states as follows:

INTRODUCTION

1. This action arises out of Defendants' failure to comply with their obligations under the Employee Retirement Income Security Act of 1974, codified as part of 29 U.S.C. § 1001, *et seq.* ("ERISA") as amended by the Consolidated Omnibus Budget Reconciliation Act of 1985 ("COBRA").

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JURISDICTION AND VENUE

2. This Honorable Court has jurisdiction pursuant to 28 U.S.C. § 1131, as this action arises under the laws of the United States, specifically, ERISA and COBRA.
3. Venue is proper pursuant to 28 U.S.C. § 1391, as a substantial part of the events or omissions giving rise to this action occurred in this judicial district.
4. Plaintiff was and is a resident of Broward County, Florida, over the age of eighteen, and was at all relevant times sui juris.
5. HSA FMC, is a Florida limited liability company, organized and existing under and by virtue of the laws of Florida. HSA FMC, at all times material hereto, conducted substantial and continuous business within Broward County.
6. HSA NSMC is a Florida limited liability company organized and existing under and by virtue of the laws of Florida. HSA NSMC, at all times material hereto, conducted substantial and continuous business within Broward County, and is subject to the laws of the United States and the State of Florida.
7. HSAF is a foreign limited liability company registered to conduct business throughout the State of Florida. HSAF, at all times material hereto, conducted substantial and continuous business within Broward County, and is subject to the laws of the United States and the State of Florida.
8. Defendants jointly owned, controlled, and operated the Hospital located at 5000 W. Oakland Park Boulevard, Lauderdale Lakes, Florida 33313 as a

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single integrated enterprise under the fictitious name "Florida Medical Center" (hereinafter referred to as "the Hospital").

9. Defendant HSA FMC employed Plaintiff, issued Plaintiff's paychecks, and maintained its principal business address at the Hospital.

10. At all relevant times, HSA NSMC owned and operated the Hospital where Plaintiff worked and was the registered licensee with the Florida Agency for Health Care Administration (AHCA) and was responsible for the Hospital's operational oversight.

11. At all relevant times, HSAF held a controlling interest in HSA NSMC and exercised control over the Hospital's governance, budgeting, and executive decision-making.

12. At all relevant times, Defendants held themselves out to employees, regulators, and the public under a common name and operated the Hospital as a single integrated enterprise.

13. Defendants acted as Plaintiff's joint employers, and collectively exercised control over Plaintiff's employment and the adverse actions alleged herein.

14. At all times relevant hereto, Defendants, individually and/or in combination employed at least twenty (20) or more employees on a typical business day during the preceding calendar year and were Plaintiff's "employer" within the meaning of 29 U.S. Code § 1002(5).

15. At all relevant times, Defendants employed Plaintiff and offered health insurance coverage through a group health plan ("the Plan").

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16. Plaintiff was a covered participant under the Plan. Both Plaintiff and Defendants contributed to the cost of coverage, and the Plan qualified as a group health plan subject to ERISA and COBRA.

17. Plaintiff is authorized to bring this action pursuant to 29 U.S.C. § 1132(a)(1)(A).

GENERAL ALLEGATIONS

18. Plaintiff began working for Defendants in January 2025 after Defendants acquired the Hospital where Plaintiff was employed.

19. On April 25, 2025, Defendants wrongfully terminated Plaintiff's employment and immediately discontinued his medical insurance benefits under the Plan.

20. Within a week of his termination, Plaintiff contacted Defendants' Human Resources Department to request information regarding his COBRA rights. Defendants failed to provide any information in response.

21. Plaintiff's termination constituted a qualifying event under 29 U.S.C. § 1163(2).

Defendants' Notice Obligations and Failure to Provide COBRA Notice

22. COBRA required Defendants to notify the plan administrator of Plaintiff's qualifying event within thirty (30) days of April 25, 2025. If Defendants were acting as the plan administrator, COBRA required them to provide Plaintiff with a COBRA election notice within forty-four (44) days of the qualifying event.

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23. Plaintiff was entitled to receive a COBRA election notice no later than June 8, 2025.

24. Defendants failed to notify the plan administrator of the qualifying event and/or failed to provide Plaintiff with the required COBRA election notice.

25. As a direct result, Plaintiff never received COBRA notice and was denied the opportunity to elect continuation coverage under the Plan.

COUNT I
FAILURE TO PROVIDE TIMELY NOTICE IN VIOLATION OF COBRA
(ALL DEFENDANTS)

26. Plaintiff restates and alleges Paragraphs 1 through 25 as if fully set forth herein.

27. COBRA required Defendants to notify the plan administrator of Plaintiff's qualifying event within thirty (30) days of April 25, 2025, or, if acting as the plan administrator, to provide Plaintiff with a COBRA election notice within forty-four (44) days of the qualifying event.

28. Defendants failed to comply with these statutory notice obligations within the required time period.

29. As a result of Defendants' failure to comply, Plaintiff did not receive notice of his right to elect continuation coverage under COBRA and was denied continuation coverage under the Plan.

30. Upon information and belief, Defendants have still not complied with their notice obligations as of the date of this Complaint, despite Plaintiff's multiple informal requests for COBRA information following his termination.

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31. Defendants are liable for civil penalties under 29 U.S.C. § 1132(c)(3). Plaintiff has suffered damages including medical expenses, replacement insurance costs, attorney's fees, and litigation costs.

WHEREFORE, Plaintiff respectfully requests that this Honorable Court, pursuant to 29 U.S.C. § 1132(c), award any and all relief that it deems just and proper, including but not limited to:

A. Reimbursement of all medical expenses incurred from the date of the qualifying event through present;

B. $100.00 per day from the date of such failure, along with the damages to be assessed against Defendants;

C. Prejudgment interest for Defendants' failure to notify the administrator of the "qualifying event," and/or failure to directly notify Plaintiff of his right to elect continuing coverage under COBRA;

D. Attorney's fees and costs of litigation; and

E. Any other equitable relief that this Court deems just and proper.

[SPACE INTENTIONALLY LEFT BLANK]

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DEMAND FOR JURY TRIAL

Plaintiff, Christopher Maxfield, demands trial by jury on all issues and all counts of this Complaint so triable.

Dated: May 5, 2026.

Respectfully submitted,

By: ***/s/ Nathaly Saavedra***
J. Freddy Perera, Esq.
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Attorneys for Plaintiff

EXHIBIT B

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF FLORIDA

CASE NO. 0:26-cv-61343-MD

CHRISTOPHER MAXFIELD,

Plaintiff,

v.

HEALTHCARE SYSTEMS OF AMERICA-FLORIDA LLC, d/b/a FLORIDA MEDICAL CENTER, HSA NSMC LLC d/b/a FLORIDA MEDICAL CENTER, and HSA FMC LLC d/b/a FLORIDA MEDICAL CENTER,

Defendants.
_____/

DEFENDANTS' ANSWER AND AFFIRMATIVE DEFENSES TO PLAINTIFF'S COMPLAINT

Defendants, Healthcare Systems of America-Florida LLC, d/b/a Florida Medical Center ("HSAF"); HSA NSMC LLC, d/b/a Florida Medical Center ("HSA NSMC"); and HSA FMC LLC, d/b/a Florida Medical Center ("HSA FMC") (collectively "Defendants"), by and through the undersigned attorneys, file this Answer and Affirmative Defenses to Plaintiff's Complaint and Demand for Jury Trial, and state as follows:

INTRODUCTION

1. Defendants admit Plaintiff is alleging claims under ERISA and COBRA. Defendants deny the remaining allegations in paragraph 1.

JURISDICTION AND VENUE

2. Paragraph 2 contains a jurisdictional allegation and conclusions of law to which no response is required. To the extent a response is required, Defendants deny the allegations in paragraph 2.

3. Paragraph 3 contains conclusions of law regarding venue to which no response is required. To the extent a response is required, Defendants deny the allegations in paragraph 3.

4. Defendants lack knowledge sufficient to admit or deny the allegations in paragraph 4.

5. Defendants admit that HSA FMC is a Florida limited liability company. Defendants deny the remaining allegations in paragraph 5.

6. Defendants admit that HSA NSMC is a Florida limited liability company. Defendants deny the remaining allegations in paragraph 6.

7. Defendants admit that HSAF is a limited liability company registered to do business in Florida. Defendants deny the remaining allegations in paragraph 7.

8. Defendants deny the allegations in paragraph 8.

9. Defendants admit that HSA FMC maintained its principal place of business at the Hospital. Defendants deny the remaining allegations in paragraph 9.

10. Defendants deny the allegations in paragraph 10, as phrased.

11. Defendants deny the allegations in paragraph 11.

12. Defendants deny the allegations in paragraph 12.

13. Defendants deny the allegations in paragraph 13.

14. Defendants deny the allegations in paragraph 14.

15. Defendants deny the allegations in paragraph 15, as phrased.

16. Defendants deny the allegations in paragraph 16, as phrased.

17. Paragraph 17 contains conclusions of law to which no response is required. To the extent a response is required, Defendants deny the allegations in paragraph 17.

GENERAL ALLEGATIONS

18. Defendants deny the allegations in paragraph 18, as phrased.

19. Defendants deny the allegations in paragraph 19.

20. Defendants deny the allegations in paragraph 20.

21. Paragraph 21 contains conclusions of law to which no response is required. To the extent a response is required, Defendants deny the allegations in paragraph 21.

22. Paragraph 22 contains conclusions of law to which no response is required. To the extent a response is required, Defendants deny the allegations in paragraph 22.

23. Paragraph 23 contains conclusions of law to which no response is required. To the extent a response is required, Defendants deny the allegations in paragraph 23.

24. Defendants deny the allegations in paragraph 24.

25. Defendants deny the allegations in paragraph 25.

COUNT I
FAILURE TO PROVIDE TIMELY NOTICE IN VIOLATION OF COBRA

26. Defendants repeat and reallege their responses to paragraphs 1 through 25.

27. Paragraph 27 contains conclusions of law to which no response is required. To the extent a response is required, Defendants deny the allegations in paragraph 27.

28. Defendants deny the allegations in paragraph 28.

29. Defendants deny the allegations in paragraph 29.

30. Defendants deny the allegations in paragraph 30.

31. Defendants deny the allegations in paragraph 31.

32. Defendants deny Plaintiff is entitled to any of the relief requested in the WHEREFORE clause of the Complaint, including subparts (A) through (E), or to any other relief whatsoever.

AFFIRMATIVE DEFENSES

1. Plaintiff's claim is barred because Plaintiff's employment was terminated by reason of Plaintiff's gross misconduct. Under 29 U.S.C. § 1163(2), a termination of employment by reason of the employee's gross misconduct is not a "qualifying event" under COBRA. Because no qualifying event occurred, no obligation to provide notice under 29 U.S.C. § 1166 arose, and Plaintiff is not entitled to statutory penalties under 29 U.S.C. § 1132(c) or any other relief.

2. Plaintiff's claim is barred, in whole or in part, by his failure to exhaust the administrative remedies available under the governing group health plan before filing suit.

3. Any recovery by Plaintiff of medical expenses or other monetary relief must be reduced and offset by: (a) the premium contributions Plaintiff would have been required to pay to maintain continuation coverage under 29 U.S.C. § 1162(3), in an amount up to 102 percent of the applicable premium for each month of coverage; and (b) all deductibles, copayments, coinsurance, exclusions, and limitations that would have applied to Plaintiff's claimed medical expenses under the terms of the governing group health plan had Plaintiff elected and maintained continuation coverage.

4. Plaintiff's claims for damages are barred, in whole or in part, by his failure to mitigate his damages, including without limitation his failure to obtain alternative health insurance coverage that was available to him through the Health Insurance Marketplace (including any special enrollment period triggered by his loss of coverage and any premium subsidies for which he qualified), through subsequent employment, or otherwise, and his failure to take reasonable steps to reduce the medical expenses he claims as damages.

5. Plaintiff lacks standing to pursue the claim, as he has not suffered any injury in fact or financial harm.

DEMAND FOR JURY TRIAL

Defendants demand a trial by jury of all issues so triable as of right by a jury.

Date: June 11, 2026

/s/ Carlos A. Garcia
Carlos A. Garcia, Esquire
Florida Bar No. 99768
WICKER SMITH O'HARA MCCOY & FORD, P.A.
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515 E. Las Olas Blvd., Suite 1400
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FTLcrtpleadings@wickersmith.com

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing was filed with the Clerk of Court using the CM/ECF system on June 11, 2026, and the foregoing document is being served this day on all counsel or parties of record on the Service List below, either via transmission of Notices of Electronic Filing generated by CM/ECF or in some other authorized manner for those counsel or parties who are not authorized to receive Notices of Electronic Filing.

/s/ Carlos A. Garcia
Carlos A. Garcia, Esquire

SERVICE LIST

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